

REGULATORY STATE AND QUASI JUDICIAL INSTITUTIONS

WHY THE REGULATORY STATE → SOURCE, FUNCTION AND DECISIONAL → REGULATORY CYCLE AND SEPARATION → NATURAL JUSTICE AND DELEGATED-POWER → REGULATOR, TRIBUNAL, COMMISSION AND → REGULATOR POWER, APPEALABILITY AND

Read the thick cyan rail from Stage 00 to the final core synthesis. Each card uses a concept-appropriate structure; the grey E card is optional enrichment only and never repairs missing core content.

PRIMARY CORE FLOW SUBORDINATE EXTRA APPROVAL / REVIEW

Approval: FALSE • Pending user review • source generation g6 and all prior artifacts unchanged

CORE BEFORE EXTRA • prior artefacts unchanged • exact same master drives poster and tiles

00

STAGE 00 WHY THE REGULATORY STATE EMERGED

WHY THE REGULATORY STATE EMERGED ROOT QUESTION HOW CAN THE STATE GOVERN COMPLEX MARKETS AND RIGHTS LIBERALISATION/SPECIALISATION LESS DIRECT PRODUCTION MORE RULE-SETTING, NETWORK ACCESS, PRUDENTIAL OVERSIGHT CONSUMER/COMPETITION PROTECTION SPECIALISED ENFORCEMENT AND ADJUDICATION. MARKET FAILURES ----- MONOPOLY

ROOT QUESTION

How can the State govern complex markets and rights without daily ministerial case control?

LIBERALISATION/SPECIALISATION less direct production → more rule-setting, network access, prudential oversight

consumer/competition protection → specialised enforcement and adjudication.

CONSTITUTIONAL BASIS / ARTICLE

- ROOT QUESTION
- How can the State govern complex markets and rights without daily ministerial case control?
- LIBERALISATION/SPECIALISATION less direct production → more rule-setting, network access, prudential oversight
- consumer/competition protection → specialised enforcement and adjudication.

POWER / PROCEDURE

- MARKET FAILURES ----- monopoly
- information asymmetry
- systemic risk
- GOVERNANCE NEEDS ---- expertise

CHECK / LIMIT

- credible commitment
- rapid updating
- CONSTITUTIONAL NEED - mandate
- Regulation is a change in State technique, not disappearance of the State.

FEDERAL / RIGHTS IMPACT

- MUST REMEMBER: Classify every institution separately by legal source, primary function and decisional character
- a regulator is not always quasi-judicial.

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: LIBERALISATION/SPECIALISATION less direct production → more rule-setting, network access, prudential oversight.

01

STAGE 01 SOURCE, FUNCTION AND DECISIONAL CHARACTER

SOURCE, FUNCTION AND DECISIONAL CHARACTER LEGAL SOURCE PRIMARY FUNCTION CHARACTER OF ACT CONSTITUTIONAL REGULATORY STATUTORY REGULATORS WITH DIFFERENT MANDATES. MASTER TRAP ONE BODY MAY OCCUPY SEVERAL BOXES; IT

BODY / AUTHORITY

LEGAL SOURCE PRIMARY FUNCTION CHARACTER OF ACT constitutional regulatory quasi-legislative

rule statutory advisory administrative inquiry executive investigative quasi-judicial order

RBI/SEBI/TRAI/CERC/IRDAI/CCI → statutory regulators with different mandates.

CONSTITUTIONAL BASIS / ARTICLE

- BODY / AUTHORITY
- LEGAL SOURCE PRIMARY FUNCTION CHARACTER OF ACT constitutional regulatory quasi-legislative

POWER / PROCEDURE

- rule statutory advisory administrative inquiry executive investigative quasi-judicial order
- RBI/SEBI/TRAI/CERC/IRDAI/CCI → statutory regulators with different mandates.

CHECK / LIMIT

- MASTER TRAP one body may occupy several boxes; it is not quasi-judicial in every function.
- BODY / AUTHORITY

FEDERAL / RIGHTS IMPACT

- LEGAL SOURCE PRIMARY FUNCTION CHARACTER OF ACT constitutional regulatory quasi-legislative
- rule statutory advisory administrative inquiry executive investigative quasi-judicial order

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: MASTER TRAP one body may occupy several boxes; it is not quasi-judicial in every function.

02

STAGE 02 REGULATORY CYCLE AND SEPARATION PROBLEM

REGULATORY CYCLE AND SEPARATION PROBLEM PARENT ACT REGULATION/STANDARD INVESTIGATION SHOW-CAUSE NOTICE REASONED ORDER/PENALTY STATUTORY APPEAL HIGH COURT/SUPREME COURT CONSTITUTIONAL REVIEW. CONCENTRATION RISK MAKE RULE + INVESTIGATE + PROSECUTE + CONFIRMATION BIAS/SELF-VINDICATION.

PARENT ACT regulation/standard → licence/tariff → data/monitoring → investigation show-cause

notice → hearing → reasoned order/penalty → statutory appeal

High Court/Supreme Court constitutional review.

CONCENTRATION RISK make rule + investigate + prosecute + decide → confirmation bias/self-vindication.

SAFEGUARDS separate wings

CONSTITUTIONAL BASIS / ARTICLE

- PARENT ACT regulation/standard → licence/tariff → data/monitoring → investigation show-cause
- notice → hearing → reasoned order/penalty → statutory appeal
- High Court/Supreme Court constitutional review.

POWER / PROCEDURE

- CONCENTRATION RISK make rule + investigate + prosecute + decide → confirmation bias/self-vindication.
- SAFEGUARDS separate wings
- unbiased member

CHECK / LIMIT

- external appeal.
- ANSWER STRIP
- Efficiency can justify combined functions; fairness requires functional separation.

FEDERAL / RIGHTS IMPACT

- CONCENTRATION RISK make rule + investigate + prosecute + decide → confirmation bias/self-vindication.

02

STAGE 02

REGULATORY CYCLE AND SEPARATION PROBLEM

REGULATORY CYCLE AND SEPARATION PROBLEM

PARENT ACT REGULATION/STANDARD

INVESTIGATION SHOW-CAUSE NOTICE

REASONED ORDER/PENALTY

STATUTORY APPEAL

HIGH COURT/SUPREME COURT CONSTITUTIONAL REVIEW.

CONCENTRATION RISK MAKE RULE + INVESTIGATE + PROSECUTE +

CONFIRMATION BIAS/SELF-VINDICATION.

PARENT ACT regulation/standard → licence/tariff → data/monitoring → investigation show-cause

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CONCENTRATION RISK make rule + investigate + prosecute + decide → confirmation bias/self-vindication.

SAFEGUARDS separate wings

CONSTITUTIONAL BASIS / ARTICLE

POWER / PROCEDURE

CHECK / LIMIT

FEDERAL / RIGHTS IMPACT

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: CONCENTRATION RISK make rule + investigate + prosecute + decide → confirmation bias/self-vindication.

03

STAGE 03

NATURAL JUSTICE AND DELEGATED-POWER CASES

NATURAL JUSTICE AND DELEGATED-POWER CASES

IN RE DELHI LAWS ACT (1951)

ESSENTIAL LEGISLATIVE FUNCTION CANNOT BE ABDICATED.

A.K. KRAIPAK V. UNION OF INDIA (1969)

BIAS RULE; ADMINISTRATIVE/QUASI-JUDICIAL LINE IS THIN.

MANEKA GANDHI (1978)

FAIR, JUST AND REASONABLE PROCEDURE.

S.N. MUKHERJEE V. UNION OF INDIA (1990)

In re Delhi Laws Act (1951)

essential legislative function cannot be abdicated.

A.K. Kraipak v. Union of India (1969)

bias rule; administrative/quasi-judicial line is thin.

Maneka Gandhi (1978) → fair, just and reasonable procedure.

CONSTITUTIONAL BASIS / ARTICLE

POWER / PROCEDURE

CHECK / LIMIT

FEDERAL / RIGHTS IMPACT

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: LIMIT procedure is context-sensitive; statutory silence is not permission for arbitrariness.

04

STAGE 04

REGULATOR, TRIBUNAL, COMMISSION AND COURT

REGULATOR, TRIBUNAL, COMMISSION AND COURT

COURT GENERAL CONSTITUTIONAL/STATUTORY ADJUDICATION + FORMAL JUDICIAL AUTHORITY.

TRIBUNAL SPECIALISED STATUTORY ADJUDICATION

MERITS APPEAL/REVIEW CHAIN.

REGULATOR SECTOR RULE/LICENCE/SUPERVISION/ENFORCEMENT + CASE-SPECIFIC ADJUDICATION WHEN EMPOWERED.

COMMISSION NAME ALONE PROVES NOTHING

MAY ADVISE, INVESTIGATE, REGULATE OR ADJUDICATE.

L. CHANDRA KUMAR (1997) TRIBUNALISATION CANNOT REMOVE HIGH COURT

CONSTITUTIONAL BASIS / ARTICLE	POWER / PROCEDURE	CHECK / LIMIT	FEDERAL / RIGHTS IMPACT
COURT general constitutional/statutory adjudication + formal judicial authority.	REGULATOR sector rule/licence/supervision/enforcement + case-specific adjudication when empowered.	L. Chandra Kumar (1997) tribunalisation cannot remove High Court judicial review.	civil-court powers != court
TRIBUNAL specialised statutory adjudication → merits appeal/review chain.	COMMISSION name alone proves nothing: may advise, investigate, regulate or adjudicate.	TRAP specialised != tribunal	recommendation != binding order.

CONSTITUTIONAL BASIS / ARTICLE

POWER / PROCEDURE

CHECK / LIMIT

FEDERAL / RIGHTS IMPACT

MECHANISM / VERDICT — REGULATOR sector rule/licence/supervision/enforcement + case-specific adjudication when empowered.

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: TRAP specialised != tribunal | civil-court powers != court | recommendation != binding order.

05

STAGE 05

REGULATOR POWER, APPEALABILITY AND JUDICIAL CONTROL

REGULATOR POWER, APPEALABILITY AND JUDICIAL CONTROL

COMPETITION COMMISSION OF INDIA V. SAIL (2010)

STATUTORY STAGE AND CHARACTER DETERMINE HEARING/APPEALABILITY

NOT EVERY CCI STEP IS A FINAL QUASI-JUDICIAL ORDER.

CELLULAR OPERATORS ASSOCIATION OF INDIA V. TRAI (2016)

REGULATION MUST REMAIN WITHIN STATUTE AND SATISFY NON-ARBITRARINESS.

APPEAL CHAIN EXAMPLES

SUPREME COURT QUESTION OF LAW.

REGULATORY STATE AND QUASI JUDICIAL INSTITUTIONS • TILE 2/5 • same master rows 2355-5589 of 12654 • continues below

05

STAGE 05

REGULATOR POWER, APPEALABILITY AND JUDICIAL CONTROL

REGULATOR POWER, APPEALABILITY AND JUDICIAL CONTROL

COMPETITION COMMISSION OF INDIA V. SAIL (2010)

STATUTORY STAGE AND CHARACTER DETERMINE HEARING/APPEALABILITY

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APPEAL CHAIN EXAMPLES

SUPREME COURT QUESTION OF LAW.

Competition Commission of India v. SAIL (2010)

→

statutory stage and character determine hearing/appealability

→

not every CCI step is a final quasi-judicial order.

→

Cellular Operators Association of India v. TRAI (2016)

→

regulation must remain within statute and satisfy non-arbitrariness.

CONSTITUTIONAL BASIS / ARTICLE

POWER / PROCEDURE

CHECK / LIMIT

FEDERAL / RIGHTS IMPACT

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: TRAP specialised != tribunal | civil-court powers != court | recommendation != binding order.

06

STAGE 06

INDEPENDENCE, ACCOUNTABILITY AND CAPTURE

INDEPENDENCE, ACCOUNTABILITY AND CAPTURE

INDEPENDENCE AXES APPOINTMENT

DECISIONAL NON-INTERFERENCE.

CAPTURE BRANCHES INDUSTRY

INFORMATION/REVOLVING DOOR/COGNITIVE DEPENDENCE.

SHORT-TERM DIRECTION OR INSECURE TENURE.

PARENT MINISTRY TREATS REGULATOR AS SUBORDINATE OFFICE.

ACCOUNTABILITY PARENT ACT

CONSTITUTIONAL BASIS / ARTICLE	POWER / PROCEDURE	CHECK / LIMIT	FEDERAL / RIGHTS IMPACT
INDEPENDENCE AXES appointment	political → short-term direction or insecure tenure.	CAG where applicable	judicial review.
decisional non-interference.	bureaucratic → parent ministry treats regulator as subordinate office.	RTI consultation	ANSWER STRIP
CAPTURE BRANCHES industry → information/revolving door/cognitive dependence.	ACCOUNTABILITY parent Act	published reasons	Independence means insulation from case-specific control, not freedom from public reasons.

CONSTITUTIONAL BASIS / ARTICLE

POWER / PROCEDURE

CHECK / LIMIT

FEDERAL / RIGHTS IMPACT

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: Independence means insulation from case-specific control, not freedom from public reasons.

07

STAGE 07

DIGITAL AND PLATFORM REGULATION WITH LEGAL-STATUS FIREWALL

DIGITAL AND PLATFORM REGULATION WITH LEGAL-STATUS FIREWALL

DIGITAL HARMS NETWORK EFFECTS

DATA CONCENTRATION

DARK PATTERNS ALGORITHMIC OPACITY

CONSUMER/CHILD/CYBER RISK.

TOOL CHOICE COMPETITION LAW --- DATA-PROTECTION DUTY CONSUMER LAW

REFORM TEST CLEAR HARM

STATUTORY POWER

data concentration

→

dark patterns algorithmic opacity

→

consumer/child/cyber risk.

CONSTITUTIONAL BASIS / ARTICLE

POWER / PROCEDURE

CHECK / LIMIT

FEDERAL / RIGHTS IMPACT

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07

STAGE 07 DIGITAL AND PLATFORM REGULATION WITH LEGAL-STATUS FIREWALL

DIGITAL AND PLATFORM REGULATION WITH LEGAL-STATUS FIREWALL

DIGITAL HARMS NETWORK EFFECTS

DATA CONCENTRATION

DARK PATTERNS ALGORITHMIC OPACITY

CONSUMER/CHILD/CYBER RISK.

TOOL CHOICE COMPETITION LAW --- DATA-PROTECTION DUTY CONSUMER LAW

REFORM TEST CLEAR HARM

STATUTORY POWER

DIGITAL HARMS network effects

data concentration

dark patterns algorithmic opacity

consumer/child/cyber risk.

CONSTITUTIONAL BASIS / ARTICLE

- DIGITAL HARMS network effects
- data concentration
- dark patterns algorithmic opacity

POWER / PROCEDURE

- consumer/child/cyber risk.
- TOOL CHOICE competition law --- data-protection duty consumer law
----- sector regulation cyber law ----- interoperability/access obligation.
- REFORM TEST clear harm → statutory power → impact assessment → consultation

CHECK / LIMIT

- conflict control → proportionate rule → appeal → ex-post review.
- CURRENT FIREWALL dated Act/rule/order != draft Bill/committee paper/proposal.
- CURRENT LAW: 5 SEPTEMBER 2026

FEDERAL / RIGHTS IMPACT

- The DPDP Board is established under commenced 2025 provisions in NCR.
- Wider duties remain subject to the notified phased timetable
- draft or consultation instruments are not operative law.

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: CURRENT FIREWALL dated Act/rule/order != draft Bill/committee paper/proposal.

08

STAGE 08 ENABLING LAWS AND APPELLATE ROUTES

ENABLING LAWS AND APPELLATE ROUTES

RBI ACT 1934

BANKING REGULATION ACT 1949

REMEDY DEPENDS ON POWER

SEBI ACT 1992

SUPREME COURT

TRAI ACT 1997

COMPETITION ACT 2002

CONSTITUTIONAL BASIS / ARTICLE

SOURCE → REGULATOR → APPEAL

RBI Act 1934 / Banking Regulation Act 1949 → RBI → remedy depends on power

SEBI Act 1992 → SEBI → SAT → Supreme Court

POWER / PROCEDURE

TRAI Act 1997 → TRAI → TDSAT → Supreme Court

Competition Act 2002 → CCI → NCLAT → Supreme Court

Electricity Act 2003 → CERC/SERC → APTEL → Supreme Court

CHECK / LIMIT

PNGRB Act 2006 → downstream/midstream field; crude oil/gas production excluded

ANSWER STRIP

Never infer power or appeal from an institutional label; trace the parent Act.

FEDERAL / RIGHTS IMPACT

TRAI Act 1997 → TRAI → TDSAT → Supreme Court

CONSTITUTIONAL BASIS / ARTICLE

- SOURCE → REGULATOR → APPEAL
- RBI Act 1934 / Banking Regulation Act 1949 → RBI → remedy depends on power
- SEBI Act 1992 → SEBI → SAT → Supreme Court

POWER / PROCEDURE

- TRAI Act 1997 → TRAI → TDSAT → Supreme Court
- Competition Act 2002 → CCI → NCLAT → Supreme Court
- Electricity Act 2003 → CERC/SERC → APTEL → Supreme Court

CHECK / LIMIT

- PNGRB Act 2006 → downstream/midstream field; crude oil/gas production excluded
- ANSWER STRIP
- Never infer power or appeal from an institutional label; trace the parent Act.

FEDERAL / RIGHTS IMPACT

- TRAI Act 1997 → TRAI → TDSAT → Supreme Court

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: Never infer power or appeal from an institutional label; trace the parent Act.

09

STAGE 09 QUASI-JUDICIAL DECISION PROTOCOL

QUASI-JUDICIAL DECISION PROTOCOL

STATUTORY POWER

COMPETENT STAGE

NOTICE + DISCLOSURE

OPPORTUNITY TO ANSWER

NO BIAS

RELEVANT EVIDENCE

REASONED PROPORTIONATE ORDER

STATUTORY POWER → COMPETENT STAGE → NOTICE + DISCLOSURE

OPPORTUNITY TO ANSWER → NO BIAS / RECUSAL → RELEVANT EVIDENCE

REASONED PROPORTIONATE ORDER → STATUTORY APPEAL

CONSTITUTIONAL REVIEW ON ITS PROPER FIELD

A.K. Kraipak v. Union of India (1969): thin administrative/quasi-judicial line

CONSTITUTIONAL BASIS / ARTICLE

- STATUTORY POWER → COMPETENT STAGE → NOTICE + DISCLOSURE
- OPPORTUNITY TO ANSWER → NO BIAS / RECUSAL → RELEVANT EVIDENCE
- REASONED PROPORTIONATE ORDER → STATUTORY APPEAL

POWER / PROCEDURE

- CONSTITUTIONAL REVIEW ON ITS PROPER FIELD
- A.K. Kraipak v. Union of India (1969): thin administrative/quasi-judicial line
- S.N. Mukherjee v. Union of India (1990): reasons support review

CHECK / LIMIT

- L. Chandra Kumar (1997): constitutional review floor
- Competition Commission of India v. SAIL (2010): statutory stage controls appealability
- ANSWER STRIP

FEDERAL / RIGHTS IMPACT

- Natural justice is context-sensitive, but expertise is not a licence for arbitrariness.

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: Natural justice is context-sensitive, but expertise is not a licence for arbitrariness.

10

STAGE 10 PYQ EXECUTION AND REFORM DIAGNOSIS

PYQ EXECUTION AND REFORM DIAGNOSIS

PRELIMS SOURCE

JURISDICTION EXCLUSION

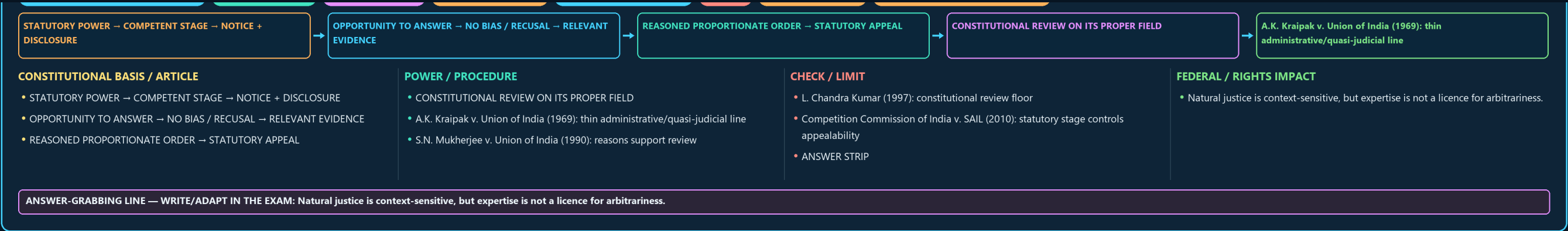
APPELLATE ROUTE

CURRENT-STATUS FIREWALL

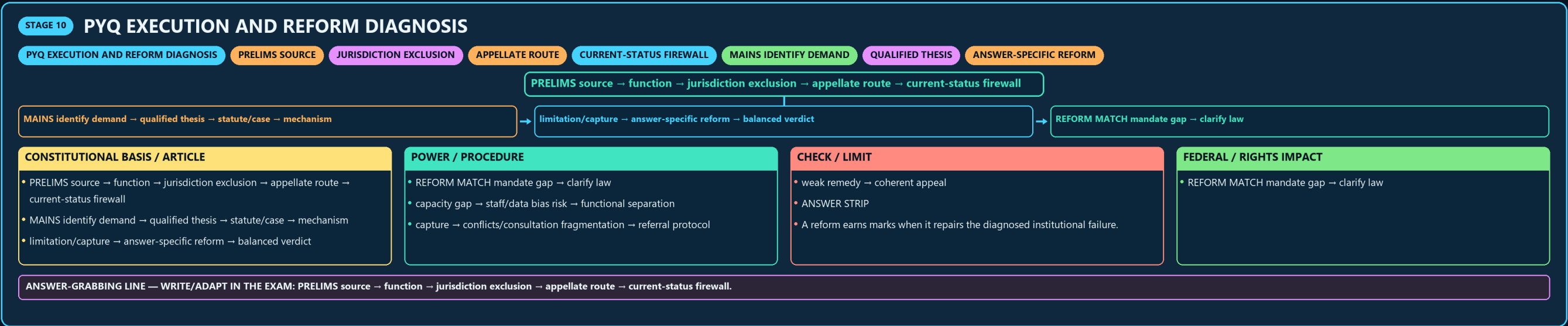
MAINS IDENTIFY DEMAND

QUALIFIED THESIS

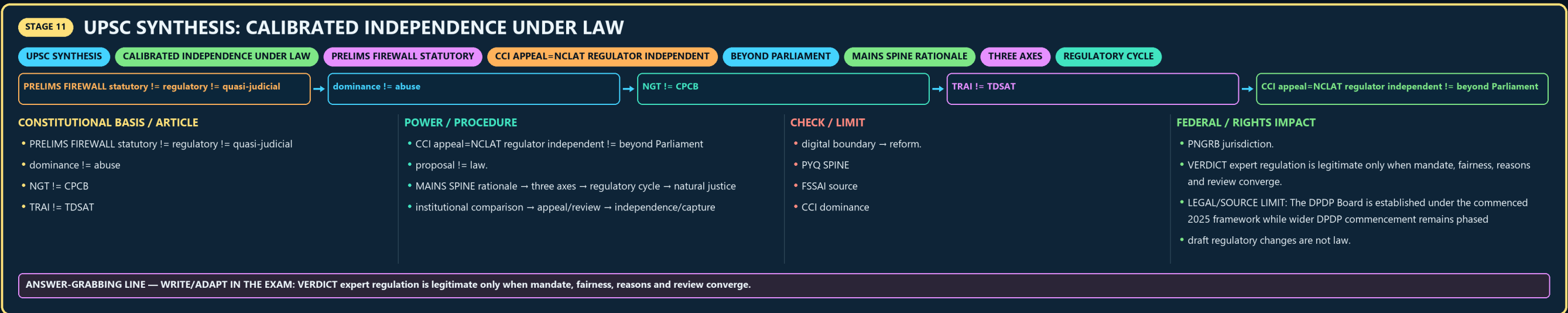
ANSWER-SPECIFIC REFORM



10



11



E

